

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 03/27/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties
EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02435
CASE NAME: BANK OF AMERICA N.A. VS. JAMES WULFSBERG
*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING

The Plaintiff's unopposed motion to vacate dismissal as to James T. Wulfsberg and enter judgment under terms of stipulated settlement, filed December 9, 2025, is **granted**. The court will sign the proposed order. The order will become effective upon service of notice of entry of order upon Defendant.

2. 9:00 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: HOOVER FLOORS
TENTATIVE RULING:

The unopposed motion of Defendant Hoover Floors, DBA Hoover Carpet Cleaning (Defendant), filed January 6, 2026, to set aside the default entered on October 30, 2025 is **DENIED**.

The defendant is a business entity and may only appear in court through an attorney. A corporation is not a natural person, and therefore it cannot appear in an action *in propria persona*. It can only appear through counsel. *Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal. 3d 724, 731. Here the moving papers appear to have been submitted by an individual on behalf of Defendant itself, rather than by an attorney purporting to represent the Defendant. There is an exception in the law to allow officers and directors of a corporation to appear in small claims cases. However this is an unlimited civil action and the Defendant may appear only through an attorney. The default remains in place.

3. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT /PROOF OF NOTICE OF MOTION**
FILED BY: Plaintiff Aharon Poliker
TENTATIVE RULING

Plaintiff's unopposed motion for Leave to File a First Amended Complaint is **denied without prejudice**.

Plaintiff filed a motion for Leave to File a First Amended Complaint was filed in this matter on June 5, 2025. Hearing was set for October 3, 2025.

On October 3, 2025, hearing on this motion was continued from October 3, 2025 to January 23, 2026 for lack of notice to Defendants.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be a notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the

grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP § 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

On January 23, 2026, this court ordered the Plaintiff to re-serve all parties with the notice of motion,